

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

LUIS FLORES,

Plaintiff,

-v-

**AMENDED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

Index No. 15-CV-4448(ARR)(JO)

The CITY OF NEW YORK; New York City Police
Department Sergeant STEVEN ROSADO, Shield No.
228, New York City Police Department Officer "P.O."
HAILYN OLIVARES, Shield No. 16967, P.O.
DONALD CICERO, and P.O. JOHN DOE (the name
John Doe being fictitious, as the true name and shield
number are not presently known), in their individual
capacities,

Defendants.

Plaintiff Luis Flores, by his attorneys Gillian Cassell-Stiga and Mark C. Taylor of
Rankin & Taylor, PLLC, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate the plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, amended and codified as 42 U.S.C. § 1983.
2. Plaintiff Luis Flores' rights were violated when he was arrested and subsequently prosecuted without cause.
3. Mr. Flores seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a) (3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States.

5. Venue is proper pursuant to 28 U.S.C. § 1391(a)(2) in that Mr. Flores' claim arose in the Eastern District of New York.
6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

7. Plaintiff Luis Flores is, and was at all times relevant to this action, a resident of the State of New York and the County of Kings.
8. Defendant, The City of New York ("City"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
9. Defendant, New York City Police Department Sergeant ("Sgt.") Steven Rosado ("Rosado") and P.O. Hailyn Olivares ("Olivares"), P.O. Donald Cicero ("Cicero") were at all times relevant herein, officers, employees and agents of the NYPD.
10. The true name and shield number of defendants P.O. John Doe are not presently known.¹ However, defendants are employees or agent of the NYPD. Accordingly, said defendants are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to N.Y. G.M.L. § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants becomes known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

¹ By identifying said officer as "John Doe," plaintiff is making no representations as to the gender of said officer.

11. At all times relevant herein, defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
12. The defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Mr. Flores' rights.

STATEMENT OF FACTS

13. The events herein complained of occurred primarily around 1:52 p.m. on July 18, 2013 in the vicinity of 43rd Street and 7th Avenue, in the County of Kings, in the City and State of New York.
14. Mr. Flores was enjoying an afternoon with friends at the Sunset Park Community Pool, on the afternoon of July 18, 2013.
15. A lifeguard instructed Mr. Flores' friend not to dive into the pool. At that time, P.O. Olivares, approached Mr. Flores' friend.
16. Mr. Flores decided to leave.
17. Sgt. Rosado (at time of incident Sgt. Rosado held the rank of Police Officer) approached Mr. Flores as he was trying to leave the area.
18. Sgt. Rosado placed Mr. Flores under arrest.
19. Sgt. Rosado, under penalty of perjury, made false statements on the accusatory instrument against Mr. Flores. In sum and substance, Sgt. Rosado accused Mr. Flores of failing to

follow P.O. Olivares' orders to stop running around the pool and diving into the pool and of resisting arrest.

20. Sgt. Rosado arrested Mr. Flores without a legal basis.
21. P.O. Olivares acted in concert with Sgt. Rosado to commit the tortious acts alleged above.
22. P.O. Cicero and P.O. John Doe failed to intervene in the misconduct.
23. Mr. Flores was in custody until being released on July 19, 2013.
24. Mr. Flores appeared in Criminal Court of the City of New York, County of Kings, approximately 16 times.
25. The charge of resisting arrest against Mr. Flores was dismissed on July 16, 2014.
26. Upon motion of the prosecution, the remaining charges were dismissed against Mr. Flores, in connection with this incident, on December 8, 2014.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against Individual Defendants)**

27. Mr. Flores incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
28. The individual defendants, under color of state law, subjected Mr. Flores to the foregoing acts and omissions, thereby depriving Mr. Flores of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from malicious prosecution by the police; (e) freedom from having police officers fabricate evidence against him; (f) abuse of process; and (g) failure to intervene.

29. Individual defendants' deprivation of Mr. Flores constitutional rights resulted in the deprivation of his liberty, psychological and emotional injury, humiliation, costs and expenses, and loss of income.

SECOND CLAIM FOR RELIEF
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)

30. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

31. At all times material to this complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

32. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants Sgt. Rosado, P.O. Olivares, P.O. Cicero, and P.O. John Doe, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.

33. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

34. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

35. Mr. Flores demands a trial by jury in this action on each and every one of his damage claims.

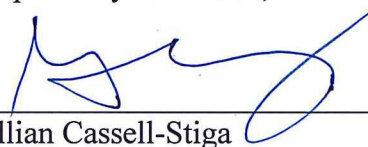
WHEREFORE Mr. Flores demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendant; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
December 16, 2015

Respectfully submitted,

By:



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